

**UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the	)	
Interstate Transmission System	)	Docket No. RM26-4-000

**COMMENTS OF THE
MARYLAND PUBLIC SERVICE COMMISSION**

On October 23, 2025, the U.S. Secretary of Energy issued a proposed Advance Notice of Proposed Rulemaking (proposed “ANOPR”), pursuant to Section 403 of the Department of Energy Organization Act, directing the Federal Energy Regulatory Commission (“Commission” or “FERC”) to initiate a rulemaking and consider potential reforms to ensure the timely and orderly interconnection of new large loads to the transmission system. Subsequently on October 27, 2025, the Commission issued a Notice Inviting Comments on the proposed ANOPR. On November 7, 2025, the Commission issued a Notice extending the time to file comments to November 21, 2025. In response to the ANOPR, the Maryland Public Service Commission (“Maryland PSC”) provides the following comments.

I. INTRODUCTION

The Maryland PSC appreciates the opportunity to comment on this ANOPR, as the Maryland PSC regards large load interconnection as a matter of critical importance. The U.S. power grid is facing unprecedented challenges from the recent advent of unprecedented large load growth, further exacerbated by the retirement of baseload generation and the slow pace of new generation additions. While this large load expansion unequivocally places significant new demand on the electric grid in Maryland, in the broader PJM region, and beyond—presenting unique hurdles for demand forecasting and system planning—it also presents an opportunity for states to partner with the Commission to advance technological innovation and economic growth.

Given the influx of data center proposals in Maryland, the Maryland PSC is in the process of addressing large load interconnection with state-specific requirements.¹ Achievement of the ANOPR’s intended objective need not require the Commission to attempt to assert jurisdiction over entities and processes that otherwise fall under state jurisdiction. Rather, the Maryland PSC believes that pairing state-developed initiatives, including large load-specific tariffs, with the recommended FERC actions described in these comments, to facilitate large load entrants presents the optimal path forward. Such a cooperative approach would align with the precepts in the Federal Power Act (“FPA”) and, importantly, would ensure resource adequacy, reliability and affordability.²

II. COMMENTS

The comments below do not attempt to respond to every concept in the ANOPR, but instead provide observations, guidance, and recommendations on key issues.

A. Principle 1

[T]o avoid even arguably affecting the States’ jurisdiction over generation facilities, facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or transmissions consumed by the transmitter, the Commission’s jurisdiction should be limited to interconnections directly to transmission facilities, consistent with the Commission’s seven-factor test.

The Maryland PSC urges the Commission to limit the scope of the proposed ANOPR and uphold the long-standing jurisdictional division between federal and state powers under the FPA. The FPA clearly demarcates authority over the electric grid by granting FERC jurisdiction over

¹ Maryland and over 30 other states have approved or are considering utility tariff proposals for the integration of large load customers. See Database of Emerging Large-Load Tariffs (DELTA), Smart Elec. Power All., <https://sepapower.org/large-load-tariffs-database/> (last visited Nov. 20, 2025).

² The United States Supreme Court has characterized the intent of the Federal Power Act as designed to make “federal and state powers ‘complementary’ and comprehensive.” *FERC v. Electric Power Supply Ass’n* (EPSA), 577 U.S. 260, 289 (2016).

the interstate transmission and wholesale sales of electricity, while leaving local distribution and retail sales of electricity exclusively to the states.³ The proposed ANOPR blurs this jurisdictional line by “asserting jurisdiction over the interconnection of large loads to the transmission system,”⁴ where states have historically exercised their jurisdiction.

Before asserting jurisdiction, the Commission should carefully consider that large load interconnection necessarily carries significant implications for retail sales and the distribution system. First, large load customers are end-use customers that apply for interconnection service in order to purchase electricity at retail for their own consumption. They are not directly connected to the bulk power system—that is, their physical connection is to the low-voltage side of a substation, and their permitting and construction are strictly state and local matters. Second, the outcome of applying the Seven-Factor Test under FERC Order No. 888 is that a line connecting new load to the transmission system would be classified as distribution and, therefore, be subject to state regulation. In distinguishing between local distribution and interstate transmission facilities, the Seven-Factor Test considers whether the facilities (in question) are close to retail customers; primarily radial in character; receive power that flows *into* the system and is not reconsigned; serve a geographically restricted area; involve meters to measure flow into them; and are of reduced voltage.⁵ For large load retail customers, power flows into the equipment used to connect them to the bulk power grid without being reconsigned for wholesale sale. Instead, the

³ The FPA provides that FERC “shall not have jurisdiction . . . over facilities used for the generation of electric energy or over facilities used in local distribution.” 16 U.S.C. § 824(b)(1).

⁴ Secretary of Energy, Secretary of Energy’s Direction that the Federal Energy Regulatory Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary’s Authority Under Section 403 of the Department of Energy Organization Act at § IV (Oct. 23, 2025) (“ANOPR”).

⁵ *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Servs. by Pub. Utils.; Recovery of Stranded Costs by Pub. Utils. & Transmitting Utils.*, Order No. 888, FERC Stats. & Regs. ¶ 31,036 (1996) (cross-referenced at 75 FERC ¶ 61,080), *order on reh’g*, Order No. 888-A, FERC Stats. & Regs. ¶ 31,048 (cross-referenced at 78 FERC ¶ 61,220), *order on reh’g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *order on reh’g*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff’d in relevant part sub nom. Transmission Access Poly Study Grp. v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff’d sub nom. New York v. FERC*, 535 U.S. 1 (2002).

power would be consumed in a geographically restricted area, and a meter tracking retail electricity sales is typically placed to measure flows to the large load customer. As mentioned, large loads are directly connected at low voltage. Serving a large retail customer on its own radial circuit is similar to serving retail customers via traditional distribution companies, regardless of the number of customers being served or who in the franchised utility's service territory owns the substation.

FERC Order No. 888 also states that deference is given to state regulatory authorities in defining what is considered local distribution, provided that the Seven-Factor Test is properly applied.⁶ Further, the Order states the Commission's belief that "even where there are no identifiable local distribution facilities, states nevertheless have jurisdiction in all circumstances over the service of delivering energy to end users."

The ANOPR premises the Commission's jurisdiction over large load interconnections on the analogy it makes to generator interconnections.⁷ This comparison is fundamentally flawed: a generator interconnection involves connecting a resource that injects electric power into the grid to meet the system's electrical demand. In contrast, large load interconnection involves connecting a facility that withdraws power from the grid. Furthermore, FERC issued Orders Nos. 888 and 2003 to correct inefficiencies and discrimination by vertically integrated utilities favoring their own generation resources. However, utilities have no comparable incentive to discriminate against large load, as these customers represent valuable opportunities for new retail sales and investment. And unlike generators, end-use customers are *retail* customers—they do not participate in the *wholesale* markets.

In the comments that follow, the Maryland PSC does not further characterize jurisdiction over implementation of the concepts described in the ANOPR—whether exclusive to the

⁶ Order No. 888 at 437-38 & n.548.

⁷ ANOPR at § IV.

Commission, to the states, or overlapping. Even so, the Maryland PSC cautions the Commission that states are likely to challenge whether FERC can properly exercise jurisdiction over the interconnection of large load. The Maryland PSC believes a jurisdictional dispute over load interconnection would be counterproductive to all parties' interests and should be avoided. To ensure the ANOPR's goals can be advanced expeditiously, the Commission should consider proceeding down the least disruptive path and abstain from asserting jurisdiction over end-use sales and respect the states' authority over load interconnections. The comments below are intended to support the U.S. Secretary of Energy's call for solutions that can expedite the entrance of new large load in a way that enables continued access to "affordable, reliable, and secure electricity."⁸

B. Principle 2

[C]onsistent with the Commission's pro forma LGIP and LGIA, the reforms should only apply to new loads greater than 20 MW and, for hybrid facilities, where load is greater than 20 MW.

Notwithstanding the above remarks for Principle 1, the Maryland PSC will address the ANOPR's proposed 20 MW threshold in the next part with regard to entry of hybrid facilities.

C. Principle 3

[T]o the extent practicable, load and hybrid facilities should be studied together with generating facilities. Such an approach will allow for efficient siting of loads and generating facilities and thereby minimize the need for costly network upgrades. For example, siting a large load near or at the same point of interconnection as a new generating facility could reduce the network upgrades needed to interconnect only the load or only the generating facility.

⁸ *Id.* at 1.

1. Standards set at the federal level which differ from those existing at the state level for large loads will lead to regulatory uncertainty and confusion.

The ANOPR defines “large loads” for hybrid facilities as loads greater than 20 MW that seek to share a point of interconnection with new or existing generation facilities.⁹ While the ANOPR attempts to quantitatively align a large load threshold with FERC’s definition for large generation, the Maryland PSC notes that different states, including Maryland, may have already adopted their own operational definitions of “large load” that differ from the ANOPR. The Maryland legislature has established that a “large load customer” is a commercial or industrial customer (for retail electric service) that “has or is projected to have an aggregate monthly demand of at least 100 MW....”¹⁰ Where the ANOPR would prescribe new standards and requirements on large load customers that exceed the 20 MW threshold—a much lower qualifying threshold—the Maryland PSC is concerned that if FERC were to exercise jurisdiction over load, these inconsistencies in these large load definitions would create confusion in the regulatory space and open the door to imposing standards on all retail customers—new and existing.

2. New load can be studied with new generation/storage to minimize market impacts.

Principle 3 provides that load and hybrid facilities should be studied together with generating facilities where practicable. To the extent that hybrid arrangements are to be encouraged and incentivized, the Maryland PSC believes that a “hybrid facility” could be defined as new load and new generation and/or storage that are physically located together, with the load situated in front-of-the-meter. Physically locating load and generation/storage in close proximity to each other or on the same site could minimize line losses in power delivery. There may also be

⁹ *Id.* at P 1 fn.1 (citing *Standardization of Generator Interconnection Agreements & Procs.*, FERC Order No. 2003).

¹⁰ Md. Code Ann., Pub. Util. § 4-212(a)(3)(i) (“PUA § x.x”) (LexisNexis 2025).

potential efficiency gains in equipment and land usage, as well as in permitting and siting processes.

Hybrid arrangements involving new generation/storage can maintain resource adequacy and minimize market price impacts to other customers relative to arrangements with existing generators. Bringing new (large) load on simultaneously with a matching amount of new generation/storage would maintain the supply/demand balance existing on the grid, thus causing minimal impact to the marginal cost of energy and capacity and lessening the need for network upgrades. In sharp contrast, siting load without bringing on new generation/storage in tight market supply conditions can erode reliability and raise prices for other customers, as described below.

D. Principle 4

[L]ike generating facilities, load and hybrid facilities should be subject to standardized study deposits, readiness requirements, and withdrawal penalties. These provisions deter speculative projects and provide transmission providers with more useful information to more accurately forecast demand on their systems.

The Maryland PSC shares the concern over speculative projects and the impact thereof. However, Principle 4, as it purports to apply to load and hybrid facilities with load greater than 20 MW, would impose requirements and penalties directly on large load customers, which are retail customers currently subject to retail tariffs regardless of where they interconnect. This raises potential jurisdictional conflicts with state-level requirements placed on end-use customers via state-specific retail tariffs. Instead, the Commission should focus on solutions that would preclude speculation and hold the wholesale intermediary (over which FERC has jurisdiction) accountable for the accuracy of its load projections and supplying that load, as discussed further in Section III below.

E. Principle 5

[H]ybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested. For example, a hybrid facility consisting of a 500MW load and a 600MW generating facility may seek no withdrawal rights and 100MW of injection rights." This provides incentives for co-location with new generation facilities and ensures efficient buildout of the transmission system.

In response to Principle 5, the Maryland PSC observes that netting load against generation supply at hybrid facilities could pose a risk to grid reliability. Depending on how the hybrid arrangement is configured and how it is treated by system planners, netting load against the generator's supply to the grid may risk the load: (a) escaping the "view" of grid operators during normal operations;¹¹ and (b) being excluded from future planning scenarios.¹² Consequently, the implications for grid reliability are far from trivial. Because the large loads contemplated in the ANOPR are outsized relative to most historic load growth, so too is the risk outsized if netting becomes a widespread practice. System protection facilities, as specified in Principle 6, may serve to minimize impact in some scenarios. However, at a hybrid facility sited with grid-interconnected generation, the generator remains synchronized to the bulk power system and, therefore, remains exposed to or could affect grid conditions.

Even in non-hybrid configurations the risk posed by large data center loads if not carefully integrated can be concerning, as recently experienced when several data centers in northern Virginia tripped offline simultaneously.¹³ Grid operators did an admirable job of handling that

¹¹ See Comments of ReliabilityFirst Corporation Regarding Co-Located Load Configuration at 2, Senate Bill 1 Co-location Study, Admin. Dkt. No. PC 61 (Md. Pub. Serv. Comm'n July 25, 2024).

¹² See Statement of Frederick S. "Stu" Bresler on Behalf of PJM Interconnection, L.L.C. at 6, Large Loads Co-Located at Generating Facilities, No. AD24-11-000 (FERC Nov. 4, 2024). See also the Maryland PSC's Co-Location Report for a more detailed description of the Maryland PSC's concerns related to this potential planning practice. Md. Pub. Serv. Comm'n, Report on Co-Location at § C.2 (Dec. 18, 2024) ("MD Co-Location Report"), available at https://www.psc.state.md.us/wp-content/uploads/SB1-MD-PSC-Report-on-Co-location-V4_20241217.pdf.

¹³ This event involved the loss of approximately 1,500 MW of load. Data center large loads are designed to protectively trip and switch to backup power under some of the same grid conditions as one another, and a local voltage disturbance caused several to undergo this switch at once. See NERC, Incident Review: Considering Simultaneous Voltage-

emergent event and preventing cascading consequences, and NERC has since provided recommended actions to reduce risk associated with this sort of event recurring.¹⁴ However, as more large loads are added to the system, the stakes only grow. If the impacts of these large loads during grid disturbances are not assessed and accounted for in planning strategies, or visible to grid operators in real time—as might be the case with netted or behind-the-meter load—the risks may be greater still.

F. Principle 7

[T]he interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited. The system operator's ability to control such facilities through curtailment and/or dispatch must be sufficient for the system operator to integrate the facility into both operations and system planning. This ensures the timely and orderly addition of large loads to the transmission system in a safe, reliable, and non-discriminatory manner.

1. Incentives to curtail large load could adversely impact energy prices and reliability.

The Maryland PSC understands the concept behind Principle 7—that is, incentivizing a willingness by large load customers to curtail—may yield system benefit. This is not guaranteed, however. Furthermore, if a significant amount of curtailment is incentivized and implemented such that new large loads are added to the system faster than new generation can come online, a growing number of customers would be leaning on a relatively stagnant supply of electricity. This would mean that critical system conditions could be approached more frequently and reliability would be challenged more often. Increases in demand during periods when resources are not being curtailed (off-peak periods) could also result in increased energy prices during those periods, and raise

Sensitive Load Reductions (Jan. 8, 2025), available at https://www.nerc.com/globalassets/our-work/reports/event-reports/incident_review_large_load_loss.pdf.

¹⁴ NERC, Industry Recommendation: Large Load Interconnection, Study, Commissioning, and Operations at 3-7 (Sept. 9, 2025), available at <https://www.nerc.com/globalassets/programs/bpsa/alerts/2025/nerc-alert-level-2--large-loads.pdf>.

overall costs for all other customers. Furthermore, the capacity market would no longer be functioning as intended—to capture the “missing money.” To protect ratepayers and the markets they rely upon, as well as overall system reliability, the Maryland PSC recommends that the Commission require regional transmission organizations/independent system operators (RTOs/ISOs) to study the potential impacts of an overreliance on curtailments and to define measures to best address these concerns.

2. The PJM Independent Market Monitor found that removing generation will increase capacity prices in Maryland.

To further demonstrate the above-mentioned concern, the Maryland PSC directs the Commission to a recent analysis conducted by the PJM Independent Market Monitor (“IMM”). The IMM conducted analyses of the estimated capacity and energy cost impacts of co-locating large load with existing nuclear generation in the larger PJM region. The IMM study used the removal of nuclear generation—a source of existing generation explicitly contemplated for use with new large loads¹⁵—as a proxy for the impact of large load additions on PJM electricity market prices. According to the IMM, removing 10,000 MW of nuclear generation in the entire PJM footprint would have increased capacity prices in the state of Maryland by approximately 47% (\$526 million) relative to the 2025/2026 Base Residual Auction (“BRA”) results. The IMM estimated that removal of this same amount of nuclear energy would have also increased day-ahead energy prices in 2023 by 28% - 115% (\$32 - \$54 billion).¹⁶ Bringing new generation/storage simultaneously with new large loads is the most direct response to this supply/demand imbalance problem.

¹⁵ Monitoring Analytics, Comments to the Maryland PSC Senate Bill 1 Co-location Study Administrative Docket PC 61 at 1 (Sept. 24, 2024) (“IMM Comments”), available at https://www.monitoringanalytics.com/filings/2024/IMM_Comments_MDPSC_PC61_20240924.pdf.

¹⁶ *Id.* at 5-7.

G. Principle 8

[L]oad and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies.

The Maryland PSC supports the principle of cost allocation on the basis of cost causation, and would emphasize that the total impact to grid reliability caused by a new large load or hybrid facility should be fully represented in the costs that they are assigned through interconnection studies. However, cost assignment could diverge from the impacts the load is causing under certain scenarios, leaving other loads to bear an additional cost burden for impacts they did not cause.¹⁷ Such an outcome should be avoided.

H. Principle 10

[A]n existing generating facility that seeks to enter a partial suspension to serve a new load at the same location must go through a system support resource (SSR)/reliability must run (RMR) type study. The study must consider system conditions, including forecasted load growth, at least three years after the proposed suspension date. The partial suspension can only proceed after any network upgrades needed to ensure reliability are placed into service. Any such network upgrades shall be the responsibility of the generating facility.

Principle 10 contemplates siting new load with existing generation and indicates that, under these circumstances, any network upgrades deemed necessary through a forward-looking study of system conditions would be paid for by the generating facility. The Principle also prohibits the partial suspension from taking effect until all necessary network upgrades are placed into service. The Maryland PSC believes that existing resource adequacy conditions must be considered. Existing generation currently serving customers should not be allowed to suspend their existing

¹⁷ For example, as discussed in the Maryland PSC's Report on Co-Location, behind-the-meter loads (or loads otherwise making payments based on being netted against generation) could perpetually avoid payment of transmission upgrade costs they are partially responsible for, depending on how a study process is administered. See MD Co-Location Report at § D.2.2.

service, in whole or in part, simply to serve new large load. Such a suspension would have an adverse impact on cost and raise energy prices. Simply upgrading the transmission network does not resolve this problem. Upgrading the transmission system as a viable solution has merit only if sufficient generation supply is expected to serve the system. This is not always the case, however, as demonstrated in PJM’s most recent BRA. The total amount of capacity that cleared the 2026/2027 BRA was less than the RTO Reliability Requirement.¹⁸

Principle 10 purports to address only reliability and is merely a reaction to the supply/demand imbalance caused by the addition of large load without comparable new generation. Principle 10 fails to prevent the problem from occurring and does not address the cost impacts resulting from new load additions. The Principle would also prohibit an existing generating facility from taking a suspension and redirecting power to new load unless and until all necessary network upgrades are placed into service. During this “waiting” period, new generation supply could potentially come onto the system, thereby eliminating the need for the costly network upgrades. If, instead, FERC acts to prevent this problem from occurring—for example, by ensuring that hybrid load arrangements rely on new generation and not existing generation—the problem contemplated under Principle 10 is effectively eliminated.

III. MARYLAND REQUIREMENTS FOR LARGE LOAD INTERCONNECTION

Given that individual states have unique policies for addressing economic development tied to large loads, the regulation of such load is best addressed in state-level proceedings that can focus on local issues without the constraint of external factors. Several states, including Maryland, have initiated rulemakings and/or approved utility tariff revisions to accommodate the

¹⁸ PJM, 2026-2027 Base Residual Auction Report at 3 (July 22, 2025), available at <https://www.pjm.com/-/media/DotCom/markets-ops/rpm/rpm-auction-info/2026-2027/2026-2027-bra-report.pdf>.

interconnection of large loads to the grid.¹⁹ During the 2025 legislative session, the Maryland General Assembly took decisive action with regard to the interconnection of large load by passing the Next Generation Energy Act ("NGEA").²⁰ Among other things, the NGEA requires the State's investor-owned electric utilities to develop specific rate schedules for large load customers.²¹ The NGEA also requires the Maryland PSC to adopt regulations by June 2026 establishing certain minimum requirements aimed at reducing the financial risks to residential ratepayers associated with large load customers interconnecting to the electric system.²² To timely meet these new statutory mandates, the Maryland PSC initiated a public conference (PC72) and established a Large Load Interconnection Working Group to develop proposed regulations for large load customer interconnection and other implementation recommendations by December 6, 2025.²³

The Maryland PSC's interconnection rulemaking process is anticipated to run in parallel with the Commission's processes, given the Secretary of Energy's recent request that the Commission take final action on this ANOPR by April 30, 2026. We are concerned this concurrent timing could delay, undo, or otherwise frustrate Maryland's legislative objectives if FERC's efforts related to the ANOPR are not carefully measured and appropriately scoped.

The Maryland PSC recognizes that FERC and state commissions are facing the same challenges of how best to accommodate the rapid influx of large load in a timely and equitable

¹⁹ See, e.g., E. Howland, Utility Dive, Kansas, Michigan regulators approve large load rules for Evergy, Consumers Energy (Nov. 10, 2025), <https://www.utilitydive.com/news/kansas-michigan-data-center-large-load-evergy-consumers/805115/>; E. Goodman, RTO Insider, Large-load tariffs touted as alternative to 'side deals' (Sept. 9, 2025), <https://www.rtoinsider.com/wp-content/uploads/newsletters/2025-09-09-RTO-Insider.pdf>; see also Interconnection and Tariffs for Large Load Customers, Dkt. No. M-2025-3054271, (Pa. Pub. Util. Comm'n 2025 (tentative order) (announcing tentative guidelines for a model large load tariff and seeking comments thereon by December 6, 2025), <https://www.puc.pa.gov/pcdocs/1901687.pdf>.

²⁰ Electricity and Gas – Emissions Reductions, Rate Regulation, Cost Recovery, Infrastructure, Planning, Renewable Energy Portfolio Standard, and Energy Assistance Programs, Senate Bill 937 (2025), chaptered at 2025 Md. Laws, Chap. 626.

²¹ PUA § 4-212(c)(1)(i).

²² PUA § 4-212(b).

²³ The NGEA requires the Maryland PSC to adopt final regulations on large load interconnection by June 1, 2026.

manner. For states like Maryland that are actively working to address new large load quickly and affordably, the Commission should take this opportunity to work with states to achieve the best outcome for all customers.

IV. PATH FORWARD

The ANOPR seeks to initiate a plan for reform. The Maryland PSC offers—as a high-level recommendation—that actions should be taken to address large load growth as quickly as possible while considering the far-reaching consequences of these actions. Any plan or solutions developed by the Commission and implemented now should be devised such that they are sustainable and safeguard against future recurrence of similar circumstances.

Notwithstanding the Maryland’s anticipated large load utility tariff filings next month and planned rulemaking on large load interconnection to follow, a path forward could be accomplished by requiring LSEs to identify the amount of large load additions they intend to supply, and to be held accountable for accommodating these additions in a manner that retains reliability and affordability for other customers. The LSE would need to demonstrate to the RTO/ISO and state regulators sufficient amounts of new generation or new demand response related to the amounts of new large loads to be served. In alignment with recent comments submitted by the Organization of PJM States, Inc. (“OPSI”) to PJM, penalties should be considered for LSEs that do not meet their supply obligations, and associated funds could be used to compensate other customers for any cost impact of an LSE failing to do so.²⁴ In implementing the described strategy, the issue of potential cost impacts on other customers caused by large load additions is transformed into an

²⁴ PJM recently implemented its Critical Issue Fast Path (“CIFP”) accelerated stakeholder process to address resource adequacy and other challenges arising from interconnecting large loads. *See* OPSI, Commission Staff Position Statement on CIFP at 2 (Nov. 10, 2025) (stating, “To further incent new large loads to contribute to resource adequacy, PJM should also consider penalties for LSEs that fail to meet the supply obligations associated with their new large loads and how those funds could be used to compensate other customers for the energy and capacity market cost impacts of their failure to do so, and any involuntary curtailments.”), available at <https://opsi.us/wp-content/uploads/2025/11/OPSI-Staff-Position-Statement-on-CIFP.pdf>.

incentive for LSEs to be instrumental in fulfilling the intent of the ANOPR while existing state and federal jurisdictional boundaries are maintained.

In no event should the Commission allow a situation where resource adequacy is compromised to the point of mandatory load shedding. Subjecting existing customers to higher energy prices and a less reliable grid should never be the outcome of integrating new large loads.

V. CONCLUSION

The Maryland Public Service Commission recognizes the critical need to ensure the timely and orderly interconnection of new large loads while safeguarding grid reliability and ratepayer affordability. The Maryland PSC is confident that the guidance recommended in these comments will assist the Commission in meeting its stated goal.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I am on this date serving a copy of the foregoing document upon each person designated on the official service list compiled by the Federal Energy Regulatory Commission in accordance with the requirements of Rule 2010 of the Commission's Rules of Practice and Procedure.

Dated at Baltimore, Maryland this 21st day of November, 2025.

/s/ Joey Tsu-Yi Chen
Joey Tsu-Yi Chen